

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 12, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Segrave, and pursuant to support received by Mr. Cook and Mr. Johnson, agenda item #21 was removed from the Consent Agenda. Upon request by Mr. Cook, and pursuant to support received by Dr. Rinne and Mr. Segrave, agenda item #28(b) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on March 22, 2021. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located northwest of the intersection of Dell Range Boulevard and Whitney Road. Seth Lloyd, Planning and Development Department, explained they received a petition to annex the land, provided information on the property and reviewed requirements of compliance with annexation conditions contained in state statutes. Mr. Lloyd explained agenda items #14 & #15 are affiliated with the annexation. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing.

ORDINANCE – 3rd READING – Amending Section 5.12.110, Open Container-Sales and Consumption-Exceptions, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne. Dominic Bravo, Visit Cheyenne President and CEO, spoke about the success of open container events held last summer, how the open container program will be an incentive for travel to Cheyenne and expressed support for the ordinance generally. Tom Hirsig, President and CEO of Cheyenne Frontier Days, spoke in support of the ordinance from a community perspective related to downtown open container allowance and expressed concern with striking “malt beverage permits” in 5.12.110(B)(3) relating to activities held within Frontier Park. Mayor Collins explained a substitute addressing the concern would be upcoming. Muriah Kilmer, Freedom’s Edge, spoke in

support of the ordinance stating she believes it promotes a safer drinking environment for people to walk around with a drink during events downtown. Lt. David Janes, Cheyenne Police Department, provided information on calls for service during open container events last year and advised he believes the ordinance will assist in the public's continued trust of the Police Department as there will not be a need for minor open container infractions within the parameters of the program. Reporting for Finance Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Cook. Mr. Johnson moved to amend by substitute dated April 9, 2021, seconded by Mr. Cook. Alessandra McCoy Fakelman, Deputy City Attorney, provided information on the proposed substitute noting malt beverages are no longer stricken in 5.12.110(B)(3) and that the bulk of changes occur for open containers in the DDA district. Amber Ash, DDA Director, spoke in support of ordinance and provided information on open container events last year adding she believes this will make downtown Cheyenne a destination and will be positive for the ability to onboard downtown events. Motion to amend by substitute carried. Voting "yes" – all members of the governing body. Upon inquiry, Mr. Johnson provided information on the open container hours, noting the intent is to include events downtown that may have early start times such as Frontier Days pancake breakfasts and parades. Upon further inquiry, Mr. Johnson explained the inclusion of the entire DDA district boundaries in the open container program is for possible future businesses that may locate downtown and also to allow 2 businesses located in south Cheyenne within the boundaries to participate. Discussion continued and included comments related to concern for consumption in areas where daycare/preschool children may be, parking structures and other areas, alcohol consumption during pancake breakfasts and along the parade route, support of creating a district for open consumption, the large area contained in the DDA district boundaries and concern of lack of requirements for allowable plastic cups. Mr. Johnson explained, upon inquiry, that public intoxication can occur regardless of whether or not cup size is limited and there is a financial burden on businesses if they are responsible for providing branded cups for events. Further comments included: opinion that open container events from last summer didn't provide a true "pilot program" for the proposed open container program downtown, concern with consumption in certain areas in downtown, the large area of the DDA district boundaries consisting of 74 blocks, wide range of allowable consumption hours, importance of public education related to the ordinance changes and impact on City's Clean and Safe Crew. Main motion as amended carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no". (#4351)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB (Community Business) to MUB (Mixed-Use Business Emphasis) for property generally located at the southwest corner of the intersection of McCann Ave. and E. Pershing Blvd. Chris Lovas, Lovas Engineering, agent for the applicant, advised he was available for any questions. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body. (#4352)

ORDINANCE – 3rd READING – Amending the Unified Development Code (UDC) Section 6.6.3.b.1, Encroachments. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Rinne moved to amend by substitute dated March 25, 2021, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting "yes" – all members of

the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#4353)

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located north of Dell Range Boulevard, west of Whitney Road. Joe Patterson, Whitney Ranch LLC, expressed appreciation to city staff and governing body. Mr. Patterson reported he submitted the proper application, has met criteria as outlined in the staff report and has been working diligently with staff on design, functionality and development impact fees. He noted the development agreement is to address concerns for needs of city services in the area and hopes the governing body can expand on the document by shifting it to a city-wide policy by allowing the city to recapture certain fees. Mayor Collins expressed appreciation to Mr. Patterson for his willingness to agree to provide impact fees. Dr. Rinne moved to approve on third and final reading, seconded by Mr. White. Comment was made related to impact fees helping offset costs and help make the annexation affordable and amenable to the community and appreciation was expressed to city staff and Mr. Patterson for the development agreement for impact fees. It was further noted the city has recently contracted with a drainage and storm water engineer to review drainage for the project. Motion carried. Voting “yes” – all members of the governing body. (#4354)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-2 Agricultural to MR Medium-Density Residential for land located north of Dell Range Boulevard, west of Whitney Road. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4355)

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located north of Dell Range Boulevard and east of Griffith Avenue. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4356)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County MR (Medium-Density Residential) to MR (Medium-Density Residential) for property generally located north of Dell Range Boulevard and east of Griffith Avenue. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4357)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located northwest of and adjacent to the intersection of Dell Range Boulevard and Whitney Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-2 Agricultural to AG Agricultural for land located northwest of and adjacent to the intersection of Dell Range Boulevard and Whitney Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Rescinding Footnote 1 in Ordinance No. 4314 appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said city and fixing the amount of General and Special Taxes as part of the revenue required to meet the said appropriation, all for the fiscal year beginning July 1, 2020, and ending June 30, 2021 – referred to Finance Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Directing Cheyenne Fire and Rescue to evaluate all facilities and operations of the Cheyenne Fire and Rescue Department. Motion (per Consent Agenda) carried. (#6134)

[CA] RESOLUTION – Directing City Staff to initiate, develop, and execute a Property Assessed Clean Energy (PACE) Program. Motion (per Consent Agenda) carried. (#6135)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for Whitney Ranch, 3rd Filing, a plat of a portion of the southwest quarter of Section 23, Township 14 North, Range 66 West, of the 6th P.M., Cheyenne, Laramie County, Wyoming (located north of Dell Range Boulevard west of Whitney Road). Dr. Rinne moved to adopt, seconded by Mr. Segrave. Concern was expressed involving past unresolved drainage problems that were created by a past development. Comment was made related to a visit of the development site with staff, the applicant and members of the governing body that assisted in providing a better understanding of the proposed development and drainage plan. It was noted that for the subsequent development of the anticipated 4th filing of Whitney Ranch, it is important to make sure drainage off of the subdivision is done correctly. Comments were made regarding importance of a future storm water facility and the City’s responsibility to review and make drainage requirements. Comment was made related to the city previously having a storm water engineer and support was expressed for hiring one in the future and for a storm water utility maintenance. Motion carried. Voting “yes” – all members of the governing body. (#6136)

RESOLUTION – Supporting the ‘Cruise the Legend’ event held in Cheyenne. Dr. Rinne moved to adopt, seconded by Mr. White. Members of the governing body expressed support of the event, noted concerns with certain aspects of the event including noise disturbances and requested participants and organizers to practice good etiquette including consideration of residents living along the cruise route and to participate safely. Mayor Collins expressed support for the resolution echoing the request for participants and organizers to participate in a safe and considerate fashion. It was reported there was representation from the event at the April 6, 2021 Public Services Committee meeting and organizers are aware of the need for information to be dispersed for safe participation and that an organizer has worked with the Police Department. Comment was made that funds are being raised for non-profit organizations during the event. (#6137)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation Program Grant to provide the local match for operating funds for the City of Cheyenne for its Transit Program, as authorized by 49 U.S.C. §5311 – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Adopting the City of Cheyenne’s Statement of Design Standards, Naming, Memorial and Gifting Policy – referred to Public Services Committee. (Sponsors – Mr. Cook and Mr. Esquibel)

[CA] Professional Services Agreement between the City of Cheyenne and KLJ Engineering, Bismark, ND, for mapping and surveying services for the City Landfill (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$29,616.00). (#7319)

[CA] Professional Services Agreement between the City of Cheyenne and Federated Hermes, Pittsburgh, PA, for providing Investment Advisory Services. Motion (per Consent Agenda) carried. (#7320)

[CA] Development Agreement between the City of Cheyenne and Whitney Ranch, LLC, a Wyoming Limited Liability Corporation, Richfield, MN, to outline the responsibilities of the City and the Developer for public infrastructure improvements related to Whitney Ranch 3rd Filing subdivision. Motion (per Consent Agenda) carried. (#7321)

[CA] Maintenance Agreement between the City of Cheyenne, the Sweetgrass Owners Association and the Sweetgrass Commercial Owners Association, Cheyenne, to outline responsibilities for both construction and maintenance of the Greater Cheyenne Greenway as well as enhanced landscaping constructed within tracts of land owned by the City and for areas within the public right-of-way within Sweetgrass, 1st and 2nd Filings. Motion (per Consent Agenda) carried. (#7322)

Professional Services Agreement between the City of Cheyenne and Post & Associates, Cheyenne, for the Employee Assistance Program. Mr. Roybal moved to approve, seconded by Mr. Esquibel. Mr. Roybal moved to amend by substitute dated March 23, 2021, seconded by Mr. White. Darrin Hass, Director of Human Resources, explained the amendment is to put a dollar amount cap on program of \$20,000.00. Motion as amended carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#7323)

[CA] Professional Services Agreement between the City of Cheyenne and Western Research & Development, Ltd., Cheyenne, for design and construction management services of the Nationway Reconstruction Project (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$72,520.00). (#7324)

[CA] Professional Services Agreement between the City of Cheyenne and Stitches Acute Care Center, Cheyenne, for occupational medicine – referred to Finance Committee.

[CA] Amendment #1 to City Contract #7109 between the City of Cheyenne and the Wyoming Office of Homeland Security extending the term of the grant for the Cheyenne Regional Response Team #7 through December 31, 2021 (EMW-2019-SS-00065 Grant) – referred to Finance Committee.

[CA] Renewal of Contract #6837 between the City of Cheyenne and Delta Dental for group dental insurance benefits for City employees – referred to Finance Committee.

[CA] Consideration of Bid #S-14-21 for a Contract between the City of Cheyenne and P.E.I Wyoming, LLC, Casper, WY, for the Capitol Basin – 26th Street Interceptor Storm Sewer Extension Project (2015-2018 and 2019-2022 1 % Sales Tax). Motion (per Consent Agenda) carried (accept bid in an amount not to exceed \$3,234,842.94). (#7325)

[CA] Consideration of Bid #E-19-21 for furnishing concealable body armor for the City of Cheyenne, Cheyenne Police Department (Federal Grants and General Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-20-21 for a Contract between the City of Cheyenne and Alco Fence Co. Inc., Cheyenne, for the fencing and gates for the City of Cheyenne Compost Facility Project (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-25-21 for furnishing bituminous asphalt hot mix, tack oil, and cold mix on an annual basis, for the City of Cheyenne, Street & Alley Division (2019-2022 1 % Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-26-21 for furnishing aggregates on an annual basis, for the City of Cheyenne, Street & Alley Division (2019-2022 1 % Sales Tax) – referred to Finance Committee.

[CA] Transfer of retail liquor license application filed with the City Clerk's office for Redwood Saloon, LLC d/b/a/ Redwood Lounge & Package Liquors, 2105 E. Lincolnway, Cheyenne, Wyoming (license currently held by Ace Majestic, Inc. d/b/a Redwood Lounge and Package Liquors). Motion (per Consent Agenda) carried.

No comments were made on the Voucher Report as presented.

City of Cheyenne Naming and Memorial Policy. Mr. Cook advised it was brought to his attention following the April 6, 2021 Public Services Committee meeting that this item will need to be formally adopted by a resolution. It was recommended that a motion to acknowledge receipt be used instead of the motion to adopt for this particular agenda item which was used in the committee meeting. Mr. Cook explained that a resolution to formally adopt the proposed policy is on the agenda for referral to the Public Services Committee. Mr. Cook moved to acknowledge receipt, seconded by Mr. Segrave. Upon inquiry, City Attorney Michael O'Donnell confirmed the suggested motion to acknowledge receipt is appropriate for the agenda item. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson voting "no".

Announcement was made of Public Hearing to be held April 26, 2021 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, for the City of Cheyenne's Annual Action Plan Fiscal Year 2021, prepared by the Cheyenne Housing and Community Development Office.

Notice of Emergency Procurement. In accordance with the City of Cheyenne Purchasing Policy, an Emergency Procurement has been authorized by Mayor Collins for the emergency replacement of the damaged traffic signal at the intersection of East Pershing Boulevard & Logan Avenue. The emergency repairs have been authorized to Casper Electric for \$73,250.00.

Under other business:

City Clerk Kris Jones advised the following item was being introduced and referred to Committee of the Whole to be held on April 21, 2021 in City Council Chambers, 2101 O'Neil Avenue: Resolution setting the City's priorities for their allocation on the 1% Specific Purpose Sales and Use Tax in Laramie County, State of Wyoming, that would be put together by the County Attorney for a Special Election to be held on November 2, 2021. (Sponsor – Mr. Segrave)

Dr. Aldrich provided information on a public forum to be held on April 15, 2021 from 6-7:30 p.m. at the Kiwanis Community House related to proposed city code regarding mobile storage units. Dr. Aldrich further expressed appreciation to BOPU staff for a recent tour of the water treatment facility.

Mr. Johnson requested ceasing the use of the phrase "needs vs. wants" relating to education and discussion on 6th Penny Ballot projects.

Mr. White and Mayor Collins expressed appreciation to City staff who have assisted with the development of the plan for City Council to reconvene in council chambers after 13 months.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:12 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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